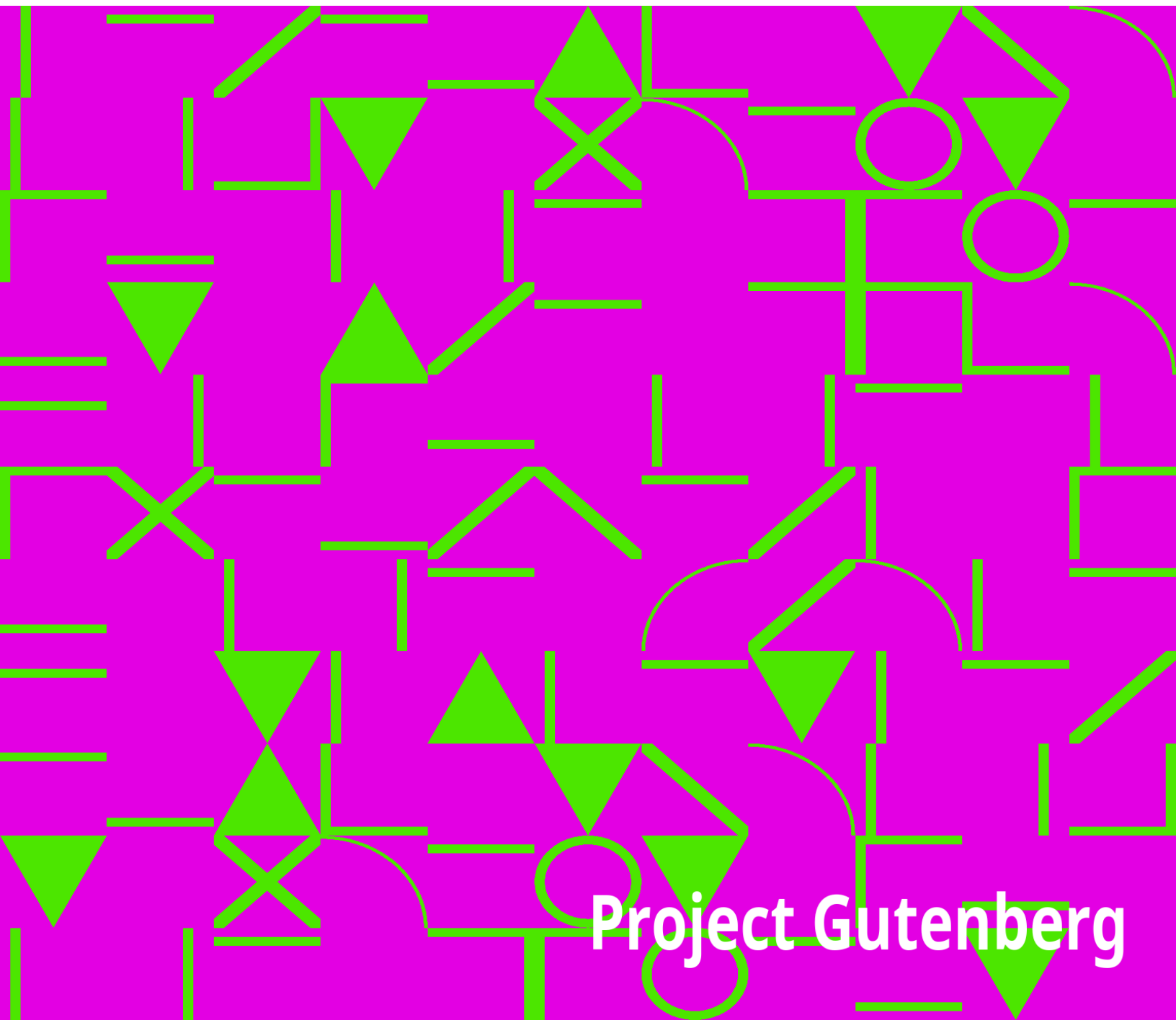


General Smith's Views of the Powers and Policy of the Government of the United States

Jr. Joseph Smith



Project Gutenberg

General Smith's Views of the Powers and Policy of the Government of the United States

Jr. Joseph Smith



Project Gutenberg

The Project Gutenberg eBook of General Smith's Views of the Powers and Policy of the Government of the United States

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: General Smith's Views of the Powers and Policy of the Government of the United States

Author: Jr. Joseph Smith

Release date: February 25, 2014 [eBook #45006]

Most recently updated: October 24, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/45006

Credits: Produced by the Mormon Texts Project. See <http://mormontextsproject.org/> for a complete list of Mormon texts available on Project Gutenberg, to help proofread similar books, or to report typos.

*** START OF THE PROJECT GUTENBERG EBOOK GENERAL
SMITH'S VIEWS OF THE POWERS AND POLICY OF THE
GOVERNMENT OF THE UNITED STATES ***

GENERAL SMITH'S VIEWS OF THE POWERS AND POLICY OF THE GOVERNMENT OF THE UNITED STATES.

NAUVOO, ILLINOIS.

PRINTED BY JOHN TAYLOR.

1844.

Transcriber's Note

The first edition, which this edition is designed to reproduce, contains a few typographical and other errors corrected in later editions (e. g. that of 1866). For clarity, several readings from later editions are used in this text; all are marked with brackets. In only one case (a tarriff being 'subversion' in the first edition and 'supervision' in others) did the changes produce a significant difference in meaning, and the context clearly supports the latter as the correct reading.

General Smith's Views

Born in a land of liberty, and breathing an air uncorrupted with the sirocco of barbarous climes, I ever feel a double anxiety for the happiness of all men, both in time and in eternity. My cogitations, like Daniel's, have for a long time troubled me, when I viewed the condition of men throughout the world, and more especially in this boasted realm, where the Declaration of Independence "holds these truths to be self-evident; that all men are created equal; that they are endowed by their Creator with certain unalienable rights; that among these are life, liberty, and pursuit of happiness," but at the same time some two or three millions of people are held as slaves for life, because the spirit in them is covered with a darker skin than ours: and hundreds of our kindred for an infraction, or supposed infraction of some over wise statute, have to be incarcerated in dungeon glooms, or suffer the more moral penitentiary gravitation of mercy in a nut-shell, while the duelist, the debauchee, and the defaulter for millions, and other criminals, take the upper-most rooms at feasts, or, like the bird of passage find a more congenial clime by flight.

The wisdom which ought to characterize the freest, wisest, and most noble nation of the nineteenth century, should, like the sun in his meridian splendor, warm every object beneath its rays: and the main efforts of her officers, who are nothing more nor less than the servants of the people, ought to be directed to ameliorate the condition of all: black or white, bond or free; for the best of books says, "God hath made of one blood all nations of men, for to dwell on the face of the earth."

Our common country presents to all men the same advantages; the same facilities; the same prospects; the same honors; and the same rewards: and without hypocrisy, the Constitution, when it says, "We, the people of the United States, in order to form a more perfect union, establish justice, ensure tranquility, provide for the common defence, promote the general welfare, and secure the blessings of liberty to ourselves and our posterity, [do] ordain and establish this Constitution for the United States of America," meant just what it said, without reference to color or condition:

ad [infinitum]. The aspirations and expectations of a virtuous people, environed with so wise, so liberal, so deep, so broad, and so high a charter of *equal rights*, as appears in said Constitution, ought to be treated by those to whom the administration of the laws are intrusted, with as much sanctity, as the prayers of the Saints are treated in heaven, that love, confidence and union, like the sun, moon and stars, should bear witness,

(For ever singing as they shine,)
"The hand that made us is divine!"

Unity is power; and when I reflect on the importance of it to the stability of all governments, I am astounded at the silly moves of persons and parties to foment discord in order to ride into power on the current of popular excitement; nor am I less surprised at the stretches of power, or restrictions of right, which too often appear as acts of legislators, to pave the way to some favorite political schemes, as destitute of intrinsic merit, as a wolf's heart is of the milk of human kindness: a Frenchman would say, "*prosque tout aimer richesses et pouvoir*;" (almost all men like wealth and power.)

I must dwell on this subject longer than others, for nearly one hundred years ago that golden patriot, Benjamin Franklin drew up a plan of union for the then colonies of Great Britain that *now* are such an independent nation, which, among many wise provisions for obedient children under their father's more rugged hand,--thus: "they have power to make laws, and lay and levy such general duties, imports, or taxes as to them shall appear most equal and just,--(considering the ability and other circumstances of the inhabitants in the several colonies,) and such as may be collected with the least inconvenience to the people; rather discouraging luxury, than loading industry with unnecessary burthens." Great Britain surely lacked the laudable humanity and fostering clemency to grant such a just plan of union--but the sentiment remains like the land that honored its birth as a pattern for wise men *to study the convenience of the people more than the comfort of the cabinet*.

And one of the most noble fathers of our freedom and country's glory: great in war, great in peace, great in the estimation of the world, and great in the hearts of his countrymen, the illustrious Washington, said in his first inaugural address to Congress: "I hold the surest pledges that as, on one

side, no local prejudices or attachments, no separate views or party animosities, will misdirect the comprehensive and equal eye which ought to watch over this great assemblage of communities and interests, so, on another, that the foundations of our national policy will be laid in pure and immutable principles of private morality; and the pre-eminence of free government be exemplified by all the attributes which can win the affections of its citizens, and command the respect of the world." Verily, here shines the virtue and wisdom of a statesman in such lucid rays that had every succeeding Congress followed the rich instruction, in all their deliberations and enactments, for the benefit and convenience of the whole community and the communities of which it is composed, no sound of a rebellion in South Carolina; no rupture in Rhode Island; no mob in Missouri, expelling her citizens by executive authority; corruption in the ballot boxes; a border warfare between Ohio and Michigan; hard times and distress; outbreak upon outbreak in the principal cities: murder, robbery, and defalcations, scarcity of money, and a thousand other difficulties, would have torn asunder the bonds of the union; destroyed the confidence of man; and left the great body of the people to mourn over misfortunes in poverty, brought on by corrupt legislation in an hour of proud vanity, for self aggrandizement. The great Washington, soon after the foregoing faithful admonition for the common welfare of his nation, further advised Congress that "among the many interesting objects which will engage your attention, that of providing for the common defence will merit particular regard. To be prepared for war is one of the most effectual means of preserving peace." As the Italian would say: "*Buono avviso*," (good advice.)

The elder Adams in his inaugural address, gives national pride such a grand turn of justification, that every honest citizen must look back upon the infancy of the United States with an approving smile and rejoice, that patriotism in the rulers, virtue in the people, and prosperity in the union, once crowned the expectations of hope; unveiled the sophistry of the hypocrite and silenced the folly of foes: Mr. Adams said, "If national pride is ever justifiable, or excusable, it is when it springs not from *power* or riches, grandeur or glory, but from conviction of national innocence, information and benevolence." There is no doubt such was actually the case with our young realm at the close of the last century; peace, prosperity and union, filled the country with religious toleration, temporal enjoyment and

virtuous enterprize; and gradually, too, when the deadly winter of the "Stamp Act," the "Tea Act," and other *close communion* acts of royalty had choked the growth of freedom of speech, liberty of the press, and liberty of conscience, did light, liberty, and loyalty flourish like the cedars of God.

The respected and venerable Thomas Jefferson, in his inaugural address made more than forty years ago, shows what a beautiful prospect an innocent, virtuous nation presents to the sage's eye, where there is space for enterprize: hands for industry; heads for heroes, and hearts for moral greatness. He said, "A rising nation, spread over a wide and fruitful land, traversing all the seas with the rich productions of their industry, engaged in commerce with nations who feel power and forget right, advancing rapidly to destinies beyond the reach of mortal eye; when I contemplate these transcendant objects, and see the honor, the happiness, and the hopes of this beloved country committed to the issue and the auspices of this day, I shrink from the contemplation, and humble myself before the magnitude of the undertaking." Such a prospect was truly soul stirring to a good man, but "since the fathers have fallen asleep," wicked and designing men have unrobed the government of its glory, and the people, if not in dust and ashes, or in sack cloth, have to lament in poverty, her departed greatness, while demagogues build fires in the north and south, east and west, to keep up their spirits *till it is better times*; but year after year has left the people to *hope* till the very name of *Congress* or *State Legislature*, is as horrible to the sensitive friend of his country, as the house of "Blue Beard" is to children; or "Crockett's" Hell of London, to meek men. When the people are secure and their rights properly respected, then the four main pillars of prosperity, viz: agriculture, manufactures, navigation, and commerce, need the fostering care of government: and in so goodly a country as ours, where the soil, the climate, the rivers, the lakes, and the sea coast; the productions, the timber, the minerals; and the inhabitants are so diversified, that a pleasing variety accommodates all tastes, trades and calculations, it certainly is the highest point of [supervision] to protect the whole northern and southern, eastern and western, centre and circumference of the realm, by a judicious tariff. It is an old saying and a true one, "If you wish to be respected, respect yourselves."

I will adopt in part the language of Mr. Madison's inaugural address, "To cherish peace and friendly intercourse with all nations, having correspondent dispositions; to maintain sincere neutrality towards belligerent nations; to prefer in all cases amicable discussion and reasonable accommodation of [differences to a decision of them by an appeal to arms; to exclude] intrigues and foreign partialities, so degrading to all countries, and so baneful to free ones; to foster a spirit of independence too just to invade the rights of others, too proud to surrender their own, too liberal to indulge unworthy prejudices ourselves, and too elevated not to look down upon them in others; to hold the union of the States as the basis of their peace and happiness; to support the constitution, which is the cement of the union, as well in its limitations as in its authorities; to respect the rights and authorities reserved to the states and to the people, as equally incorporated with, and essential to the success, of the general system; to avoid the slightest interference with the rights of conscience, or the functions of religion, so wisely exempted from civil jurisdiction; to preserve in their full energy, the other salutary provisions in behalf of private and personal rights, and of the freedom of the press;" as far as intention aids in the fulfilment of duty, are consummations too big with benefits not to captivate the energies of all honest men to achieve them, when they can be brought to pass by reciprocation, friendly alliances, wise legislation, and honorable treaties.

The government has once flourished under the guidance of trusty servants; and the Hon. Mr. Monroe, in his day, while speaking of the Constitution; says, "Our commerce has been wisely regulated with foreign nations, and between the states; new states have been admitted into our union; our territory has been enlarged by fair and honorable treaty, and with great advantages to the original states; the states respectively protected by the national government, under a mild paternal system against foreign dangers, and enjoying within their separate spheres, by a wise partition of power, a just proportion of the sovereignty, have improved their police, extended their settlements, and attained a strength and maturity which are the best proofs of wholesome law well administered. And if we look to the conditions of individuals, what a proud spectacle does it exhibit? [On whom has oppression fallen in any quarter of the Union?] who has been deprived of any right of person or property? who restrained from offering his vows in the mode which he prefers to the Divine author of his being? It is well

known that all these blessings have been enjoyed in their fullest extent: and I add, with peculiar satisfaction, that there has been no example of a capital punishment being inflicted on any one for the crime of high treason." What a delightful picture of power, policy and prosperity! Truly the wise man's proverb is just: "Sedaukauh teromain goy, veh-ka-sade le-u-meem khahmaut." Righteousness exalteth a nation, but sin is a reproach to any people.

But this is not all. The same honorable statesman, after having had about forty years' experience in the government, under the full tide of successful experiment, gives the following commendatory assurance of the efficiency of the *magna charta* to answer its great end and aim: *To protect the people in their rights*. "Such, then, is the happy government under which we live; a government adequate to every purpose for which the social compact is formed; a government elective in all its branches, under which every citizen may, by his merit, obtain the highest trust recognized by the constitution; which contains within it no cause [of] discord; none to put at variance one portion of the community with another; a government which protects every citizen in the full enjoyment of his rights, and is able to protect the nation against injustice from foreign powers."

Again, the younger Adams in the silver age of our country's advancement to fame, in his inaugural address, (1825) thus candidly declares the majesty of the youthful republic, in its increasing greatness; "The year of jubilee since the first formation of our union has just elapsed--that of the declaration of Independence is at hand. The consummation of both was effected by this constitution. Since that period a population of four millions has multiplied to twelve. A territory, bounded by the Mississippi, has been extended from sea to sea. New states have been admitted to the union, in numbers nearly equal to those of the first confederation. Treaties of peace, amity and commerce, have been concluded with the principal dominions of the earth. The people of other nations, the inhabitants of regions acquired, not by conquest, but by compact, have been united with us in the participation of our rights and duties, of our burdens and blessings. The forest has fallen by the axe of our woodsmen; the soil has been made to teem by the tillage of our farmers; our commerce has whitened every ocean. The dominion of man over physical nature has been extended by the invention of our artists.

Liberty and law have walked hand in hand. All the purposes of human association have been accomplished as effectively as under any other government on the globe, and at a cost little exceeding, in a whole generation, the expenditures of other nations in a single year."

In continuation of such noble sentiments, General Jackson, upon his ascension to the great chair of the chief magistracy, said, "As long as our government is administered for the good of the people, and is regulated by their will; as long as it secures to us the rights of person and property, liberty of conscience, and of the press, it will be worth defending; and so long as it is worth defending, a patriotic militia will cover it with an impenetrable aegis."

General Jackson's administration may be denominated the *acme* of American glory, liberty and prosperity; for the national debt, which in 1815, on account of the late war, was \$125,000,000, and lessened gradually, was paid up in his golden day; and preparations were made to distribute the surplus revenue among the several states: and that august patriot, to use his own words in his farewell address, retired, leaving "a great people prosperous and happy, in the full enjoyment of liberty and peace, honored and respected by every nation in the world."

At the age, then, of sixty years, our blooming republic began to decline under the withering touch of Martin Van Buren! Disappointed ambition; thirst for power, pride, corruption, party spirit, faction, patronage; perquisites, fame, tangling alliances; priest-craft, and spiritual wickedness in *high places*, struck hands, and revelled in midnight splendor. Trouble, vexation, perplexity and contention, mingled with hope, fear and murmuring, rumbled, through the union and agitated the whole nation as would an earthquake at the centre of the earth[,] the world, heaving the sea beyond the bounds, and shaking the everlasting hills: So, in hopes of better times, while jealousy, hypocritical pretensions, and pompous ambition, were luxuriating on the ill-gotten spoils of the people, they rose in their majesty like a tornado, and swept through the land, till General Harrison appeared, as a star among the storm clouds, for better weather.

The calm came; and the language of that venerable patriot, in his inaugural address, while descanting upon the merits of the constitution and its

framers, thus expressed himself. "There were in it, features which appeared not to be in harmony with their ideas of a simple representative democracy or republic. And knowing the tendency of power to increase itself, particularly when executed by a single individual, predictions were made that, at no very remote period, the government would terminate in virtual monarchy. It would not become me to say that the fears of these patriots have been already realized. But as I sincerely believe that the tendency of measures and of men's opinions, for some years past, has been in that direction, it is, I conceive, strictly proper that I should take this occasion to repeat the assurances I have heretofore given, of my determination to arrest the progress of that tendency if it really exists, and restore the government to its pristine health and vigor." This good man died before he had the opportunity of applying one balm to ease the pain of our groaning country, and I am willing the nation should be the judge, whether General Harrison, in his exalted station, upon the eve of his entrance into the world of spirits, *told the truth or not*: with acting president Tyler's three years of perplexity, and pseudo whig democrat reign, to heal the breaches, or show the wounds, *secundum artum*, (according to art.) Subsequent events, all things considered, Van Buren's downfall, Harrison's exit, and Tyler's self-sufficient turn to the whole, go to shew, as a Chaldean might exclaim: Beram etai elauh beshmayauh gauhah rauzeen: (*Certainly there is a God in heaven to reveal secrets*;))

No honest man can doubt for a moment, but the glory of American liberty, is on the wane, and that calamity and confusion will sooner or later destroy the peace of the people. Speculators will urge a national bank as a savior of credit and comfort. A hireling pseudo priesthood will plausibly push abolition doctrines and doings, and "human rights," into Congress and into every other place, where conquest smells of fame, or opposition swells to popularity.--Democracy, Whiggery, and Cliquery, will attract their elements and foment divisions among the people, to accomplish fancied schemes and accumulate power, while poverty driven to despair, like hunger forcing its way through a wall, will break through the statutes of men, to save life, and mend the breach of prison glooms.

A still higher grade, of what the "nobility of nations" call "great men," will dally with all rights, in order to smuggle a fortune at "one fell swoop;"

mortgage Texas, possess Oregon, and claim all the unsettled regions of the world for hunting and trapping; and should an humble, honest man, red, black, or white, exhibit a better title, these gentry have only to clothe the judge with richer ermine, and spangle the lawyer's finger with finer rings, to have the judgment of his peers, and the honor of his lords as a pattern of honesty, virtue and humanity, while the motto hangs on his nation's escutcheon: "*Every man has his price!*"

Now, oh! people! turn unto the Lord and live; and reform this nation. Frustrate the designs of wicked men. Reduce Congress at least one half. Two Senators from a state and two members to a million of population, will do more business than the army that now occupy the halls of the National Legislature. Pay them two dollars and their board per diem; (except Sundays,) that is more than the farmer gets, and he lives honestly. Curtail the offices of government in pay, number and power; for the Philistine lords have shorn our nation of its goodly locks in the lap of Delilah.

Petition your state legislatures to pardon every convict in their several penitentiaries, blessing them as they go, and saying to them, in the name of the Lord, *go thy way and sin no more*. Advise your legislators when they make laws for larceny, burglary or any felony, to make the penalty applicable to work upon roads, public works, or any place where the culprit can be taught more wisdom and more virtue; and become more enlightened. Rigor and seclusion will never do as much to reform the propensities of man, as reason and friendship. Murder only can claim confinement or death. Let the penitentiaries be turned into seminaries of learning, where intelligence, like the angels of heaven, would banish such fragments of barbarism: Imprisonment for debt is a meaner practice than the savage tolerates with all his ferocity; "*Amor vincit omnia*." Love conquers all.

Petition, also, ye goodly inhabitants of the slave states, your legislators to abolish slavery by the year 1850, or now, and save the abolitionist from reproach and ruin, infamy and shame. Pray Congress to pay every man a reasonable price for his slaves out of the surplus revenue arising from the sale of public lands, and from the deduction of pay from the members of Congress. Break off the shackles from the poor black man, and hire him to labor like other human beings; for "an hour of virtuous liberty on earth, is

worth a whole eternity of bondage!" Abolish the practice in the army and navy of trying men by court martial for desertion; if a soldier or marine runs away, send him his wages, with this instruction, that *his country will never trust him again; he has forfeited his honor*. Make HONOR the standard with all men: be sure that good is rendered for evil in all cases: and the whole nation, like a kingdom of kings and priests, will rise up with righteousness; and be respected as wise and worthy on earth: and as just and holy for heaven; by Jehovah the author of perfection. More economy in the national and state governments; would make less taxes among the people: more equality through the cities, towns & country, would make less distinction among the people; and more honesty and familiarity in societies, would make less hypocrisy and flattery in all branches of the community; and open, frank, candid, decorum to all men, in this boasted land of liberty, would beget esteem, confidence, union, and love; and the neighbor from any state, or from any country, of whatever color, clime or tongue, could rejoice when he put his foot on the sacred soil of freedom, and exclaim: the very name of "*American*," is fraught with *friendship*! Oh! then, create confidence! restore freedom!--break down slavery! banish imprisonment for debt, and be in love, fellowship and peace with all the world! Remember that honesty is not subject to law: the law was made for transgressors: wherefore, a Dutchman might exclaim: *Ein ehrlicher name ist besser als Reichthum*, (a good name is better than riches.)

For the accommodation of the people of every state and territory, let Congress shew their wisdom by granting a national bank, with branches in each state and territory, where the capital stock shall be held by the nation for the mother bank: and by the states and territories, for the branches: and whose officers and directors shall be elected yearly by the people with wages at the rate of two dollars per day for services: which several banks shall never issue any more bills than the amount of capital stock in her vaults and the interest. The net gain of the mother bank shall be applied to the national revenue, and that of the branches to the states and territories' revenues. And the bills shall be par throughout the nation, which will mercifully cure that fatal disorder known in cities, as *brokerage*; and leave the people's money in their own pockets.

Give every man his constitutional freedom, and the president full power to send an army to suppress mobs; and the states authority to repeal and impugn that relic of folly, which makes it necessary for the governor of a state to make the demand of the president for troops, in case of invasion or rebellion. The governor himself may be a mobber and, instead of being punished, as he should be for murder and treason, he may destroy the very lives, rights, and property he should protect. Like the good Samaritan, send every lawyer as soon as he repents and obeys the ordinances of heaven, to preach the gospel to the destitute, without purse or scrip, pouring in the oil and the wine: a learned priesthood is certainly more honorable than an *"hireling clergy."*

As to the contiguous territories to the United States, wisdom would direct no tangling alliance: Oregon belongs to this government honorably, and when we have the red man's consent, let the union spread from the east to the west sea; and if Texas petitions Congress to be adopted among the sons of liberty, give her the right hand of fellowship; and refuse not the same friendly grip to Canada and Mexico; and when the right arm of freemen is stretched out in the character of a navy, for the protection of rights, commerce and honor, let the iron eyes of power, watch from Maine to Mexico, and from California to Columbia; thus may union be strengthened, and foreign speculation prevented from opposing broadside to broadside.

Seventy years have done much for this goodly land; they have burst the chains of oppression and monarchy; and multiplied its inhabitants from two to twenty millions; with a proportionate share of knowledge: keen enough to circumnavigate the globe; draw the lightning from the clouds: and cope with all the crowned heads of the world.

Then why? Oh! why! will a once flourishing people not arise, phoenix like, over the cinders of Martin Van Buren's power; and over the sinking fragments and smoking ruins of other catamount politicians; and over the windfalls of Benton, Calhoun, Clay, Wright, and a caravan of other equally unfortunate law doctors, and cheerfully help to spread a plaster and bind up the *burnt, bleeding wounds* of a sore but blessed country? The southern people are hospitable and noble: they will help to rid so *free* a country of every vestige of slavery, when ever they are assured of an equivalent for

their property. The country will be full of money and confidence, when a national bank of twenty millions, and a state bank in every state, with a million or more, gives a tone to monetary matters, and makes a circulating medium as valuable in the purses of the whole community, as in the coffers of a speculating banker or broker.

The people may have faults but they should never be trifled with. I think Mr. Pitt's quotation in the British Parliament of Mr. Prior's couplet for the husband and wife, to apply to the course which the king and ministry of England should pursue to the then colonies of the *now* United States, might be a genuine rule of action for some of the *breath made* men in high places, to use towards the posterity of this noble, daring people:

"Be to her faults a little blind;
Be to her virtues very kind."

We have had democratic presidents; whig presidents; a pseudo democratic whig president; and now it is time to have a *president of the United States*; and let the people of the whole union, like the inflexible Romans, whenever they find a *promise* made by a candidate, that is not *practised* as an officer, hurl the miserable sycophant from his exaltation, as God did Nebuchadnezzar, to crop the grass of the field, with a beast's heart among the cattle.

Mr. Van Buren said in his inaugural address, that he went "into the presidential chair the inflexible and uncompromising opponent of every attempt, on the part of Congress, to abolish slavery in the District of Columbia, against the wishes of the slave holding states; and also with a determination equally decided to resist the slightest interference with it in the states where it exists." Poor little Matty made this rhapsodical sweep with the fact before his eyes, that the state of New York, his native state, had abolished slavery, without a struggle or a groan. Great God, how independent! From henceforth slavery is tolerated where it exists: constitution or no constitution; people or no people; right or wrong; Vox Matti; vox Diaboli: "the voice of Matty"--"the voice of the devil;" and peradventure, his great "Sub-Treasury" scheme was a piece of the same mind: but the man and his measures have such a striking resemblance to the anecdote of the Welshman and his cart-tongue, that when the constitution

was so long that it allowed slavery at the capitol of a free people, it could not be cut off; but when it was so short that it needed a *Sub-Treasury*, to save the funds of the nation, it *could be spliced*! Oh, granny, what a long tail our puss has got! As a Greek might say, *hysteron proteron*: the cart before the horse: but his mighty whisk through the great national fire, for the presidential chestnuts, *burnt the locks of his glory with the blaze of his folly!*

In the United States the people are the government; and their united voice is the only sovereign that should rule; the only power that should be obeyed; and the only gentlemen that should be honored; at home and abroad; on the land and the sea: Wherefore, were I president of the United States, by the voice of a virtuous people, I would honor the old paths of the venerated fathers of freedom: I would walk in the tracks of the illustrious patriots, who carried the ark of the government upon their shoulders with an eye single to the glory of the people and when that people petitioned to abolish slavery in the slave states, I would use all honorable means to have their prayers granted: and give liberty to the captive; by paying the southern gentleman a reasonable equivalent for his property, that the whole nation might be free indeed! When the people petitioned for a national bank, I would use my best endeavors to have their prayers answered, and establish one on national principles to save taxes, and make them the controllers of its ways and means; and when the people petitioned to possess the territory of Oregon or any other contiguous territory; I would lend the influence of a chief magistrate to grant so reasonable a request, that they might extend the mighty efforts and enterprise of a free people from the east to the west sea; and make the wilderness blossom as the rose; and when a neighboring realm petitioned to join the union of the sons of liberty, my voice would be, *come*: yea, come, Texas; come Mexico; come Canada; and come all the world--let us be brethren: let us be one great family; and let there be universal peace. Abolish the cruel custom of prisons (except in certain cases,) penitentiaries, and court martials for desertion; and let reason and friendship reign over the ruins of ignorance and barbarity; yea I would, as the universal friend of man, open the prisons; open the eyes; open the ears and open the hearts of all people, to behold and enjoy freedom, unadulterated freedom: and God, who once cleansed the violence of the earth with a flood; whose Son laid down his life for the salvation of all his

father gave him out of the world; and who has promised that he will come and purify the world again with fire in the last days, should be supplicated by me for the good of all people.

With the highest esteem,
I am a friend of virtue
and the people,
JOSEPH SMITH.

Nauvoo, Illinois, February 7, 1844.

*** END OF THE PROJECT GUTENBERG EBOOK GENERAL
SMITH'S VIEWS OF THE POWERS AND POLICY OF THE
GOVERNMENT OF THE UNITED STATES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.